THIS ENDORSEMENT CHANGES THE POLICY.
PLEASE READ IT CAREFULLY.

MS-EDGE GENERAL LIABILITY ENDORSEMENT FOR CONTRACTORS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

SUMMARY OF COVERAGE EXTENSIONS

Extension	Limit
1. **Supplementary Payments - Increased Limits**	
Bail bonds	$3,000
Loss of Earnings	$1,500
2. **Miscellaneous Additional Insureds**	
Mortgagee, Assignee or Receiver	Included
Managers or Lessors of Premises	Included
Controlling Interest	Included
Co-Owners of Insured Premises	Included
Owners or Other Interest From Whom Land Has Been Leased	Included
Lessor of Leased Equipment	Included
Owners or Contractors for Whom You are Performing Ongoing Operations	Included
State or Governmental Agency or Political Subdivision	Included
3. **Aggregate Limits of Insurance for Construction Projects**	General Aggregate Limit
4. **Revisions to 'Who Is An Insured'**	
Volunteer Workers	Included
5. **Expanded "Expected or Intended Injury" Definition**	Included
6. **Knowledge of Accident, Claim, Suit or Loss**	Included
7. **Unintentional Omissions in Disclosure**	Included
8. **Waiver of Subrogation by Contract or Agreement**	Included
9. **Newly Formed or Acquired Organizations**	Included
10. **Legal Liability for Damage to Premises Rented to You (Specified Perils)**	$300,000
11. **Non-Owned Watercraft Up to 51 Feet in Length**	Included
12. **Medical Payments Revised**	$15,000
13. **Property Damage for Tools Loaned to You**	$10,000
14. **Revisions to Definitions**	
"Insured Contract" Amended	Included
"Specified Perils" Added	Included
"Water Damage" Added	Included

The above is a summary of provisions in this endorsement. Please consult the specific provisions below for complete wording contained in these endorsement provisions. The endorsement provisions shall prevail in the event of a conflict between the summary and the following endorsement provisions.

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ENDORSEMENT PROVISIONS

The provisions of the Commercial General Liability Coverage Part apply except as otherwise provided in this endorsement. This endorsement applies only if such Coverage Part is included in this policy.

1. SUPPLEMENTARY PAYMENTS – INCREASED LIMITS
SECTION I - COVERAGES, SUPPLEMENTARY PAYMENTS - COVERAGES A AND B is amended as follows:

A. The limit shown in **1.b.** for the costs of bail bonds in increased to $3,000.
B. The limit shown in **1.d.** for all reasonable expenses incurred at our request, including actual loss of earnings because of time off work, is increased to $1,500.

2. MISCELLANEOUS ADDITIONAL INSUREDS
SECTION II - WHO IS AN INSURED is amended to include as an insured any person or organization (known as additional insured) described in paragraphs **(1)** through **(8)** below, whom you are required to add as an additional insured on this policy under a written contract or agreement. The written contract or agreement must be:

A. Currently in effect or becoming effective during the term of this policy; and
B. Fully executed by you and the additional insured prior to the "bodily injury", "property damage" or "personal and advertising injury", but

only the following personal or organizations are additional insureds under this endorsement, and coverage provided to such additional insureds is limited as provided herein.

(1) ADDITIONAL INSURED - MORTGAGEE, ASSIGNEE OR RECEIVER
SECTION II - WHO IS AN INSURED is amended to include as an insured any person or organization with respect to their liability as a Mortgagee, Assignee or Receiver and arising out of the ownership, maintenance, or use of the premises by you and shown in the Schedule of All Locations You Own, Rent or Occupy.

a. This insurance does not apply to structural alterations, new construction and demolition operations performed by or for that person or organization.

(2) ADDITIONAL INSURED - MANAGERS OR LESSORS OF PREMISES
SECTION II - WHO IS AN INSURED is amended to include as an insured any person or organization with respect to their liability as a Manager or Lessor of premises and arising out of the ownership, maintenance or use of that part of the premises leased to you and shown in the Schedule of All Locations You Own, Rent or Occupy, and subject to the following additional exclusions:

a. This insurance does not apply to:

(1) Any "occurrence" which takes place after you cease to be a tenant in that premises.
(2) Structural alterations, new construction or demolition operations performed by or for that person or organization.

(3) ADDITIONAL INSURED - CONTROLLING INTEREST
SECTION II - WHO IS AN INSURED is amended to include as an insured any person or organization with respect to their liability arising out of:
a. Their financial control of you; or
b. Premises they own, maintain or control while you lease occupy these premises.

This insurance does not apply to structural alterations, new construction and demolition operations performed by or for that person or organization.

(4) ADDITIONAL INSURED – CO-OWNER OF INSURED PREMISES
SECTION II - WHO IS AN INSURED is amended to include as an insured a co-owner of the insured's premises with respect to their liability arising out of their liability as co-owner of such premises.

(5) ADDITIONAL INSURED - OWNERS OR OTHER INTEREST FROM WHOM LAND HAS BEEN LEASED

SECTION II - WHO IS AN INSURED is amended to include as an insured any person or organization with respect to their liability arising out of the ownership, maintenance or us of that part of the land leased to you and shown in the Schedule of All Locations You Own, Rent or Occupy, and subject to the following additional exclusions:

a. This insurance does not apply to:

(1) Any "occurrence" which takes place after you cease to lease that land.
(2) Structural alterations, new construction or demolition operations performed by or for that person or organization.

(6) ADDITIONAL INSURED - LESSOR OF LEASED EQUIPMENT

SECTION II - WHO IS AN INSURED is amended to include as an insured any person or organization with respect to their liability arising out of the maintenance, operation or use by you of equipment leased to you by such person(s) or organization(s), subject to the following additional exclusions:

a. This insurance does not apply:

(1) To any "occurrence" which takes place after the equipment lease expires;
(2) To "bodily injury" or "property damage" arising out of the sole negligence of that person or organization.

(7) OWNERS OR CONTRACTORS FOR WHOM YOU ARE PERFORMING ONGOING OPERATIONS

SECTION II - WHO IS AN INSURED is amended to include as an insured:

a. any person or organization for whom you are performing operations but only with respect to liability for "bodily injury", "property damage", or "personal and advertising injury" caused, in whole or in part, by:

(1) Your acts or omissions; or
(2) The acts or omissions of those acting on your behalf;

in the performance of your ongoing operations for the additional insured.

A person's or organization's status as an additional insured under this provision ends when your operations for that additional insured are completed.

b. With respect to the insurance afforded to these additional insureds, the following additional exclusions apply:

This insurance does not apply to:

(1) "Bodily injury", "property damage" or "personal and advertising injury" arising out of the rendering of, or the failure to render, any professional architectural, engineering or surveying services, including:

(a) The preparing, approving, or failing to approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
(b) Supervisory, inspection, architectural or engineering activities.

(2) "Bodily Injury" or "property damage" occurring after:

(a) All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on behalf of the additional insured(s) at the location of the covered operations has been completed; or
(b) That portion of "your work" out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as a part of the same project.

(8) ADDITIONAL INSURED - STATE OR GOVERNMENTAL AGENCY OR POLITICAL SUBDIVISION

SECTION II - WHO IS AN INSURED is amended to include as an insured any state or governmental agency or subdivision or political subdivision, subject to the following additional provision:

This insurance applies only with respect to the following hazards for which the state, governmental agency or subdivision or political subdivision has issued a permit in connection with premises you own, rent or control and to which this insurance applies:

a. The existence, maintenance, repair, construction, erection, or removal of advertising signs, awnings, canopies, cellar entrances, coal holes, driveways, manholes, marquees, hoist away openings, sidewalk vaults, street banners, or decorations or similar exposures; or
b. The construction, erection, or removal of elevators; or
c. The ownership, maintenance, or use of any elevators covered by this insurance.

With respect to coverage provided by this provision **2. MISCELLANEOUS ADDITIONAL INSUREDS**, the following additional provisions also apply:

A. Any insurance provided to an additional insured designated under paragraphs **(1)** through **(8)** above does not apply:

(1) To "bodily injury" or "property damage" included within the "products-completed operations hazard"; or
(2) To "bodily injury", "property damage" or "personal and advertising injury" arising out of the sole negligence of such additional insured.

B. Paragraph **4.b.** of **SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS** is replaced with the following:

b. Excess Insurance

This insurance is excess over:

1. Any of the other insurance, whether primary, excess, contingent or on any other basis that is available to the additional insured unless you and the additional insured have specifically agreed in writing that this insurance be primary. Then we will treat any other insurance maintained by the additional insured for injury or damage covered by provision **2. MISCELLANEOUS ADDITIONAL INSUREDS**, except such other insurance as noted in paragraph **b.2**. below, as excess to this insurance.

2. Any other primary liability insurance available to the additional insured for damages arising out of premises or ongoing operations for which such person or organization has been added as an additional insured by the attachment of an endorsement.

When this insurance is excess, we will have no duty under **SECTION I – COVERAGE A BODILY INJURY AND PROPERTY DAMAGE LIABILITY** or **COVERAGE B PERSONAL AND ADVERTISING INJURY** to defend the insured against any "suit" if any other insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

(a) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and
(b) The total of all deductible and self-insured amounts under all the other insurance.

We will share the remaining loss, if any, with any other insurance that is not described in the Excess Insurance provision and was not brought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this policy or coverage part.

3. AGGREGATE LIMITS OF INSURANCE FOR SINGLE CONSTRUCTION PROJECTS

A. For all sums which the insured becomes legally obligated to pay as damages caused by "occurrences" under **SECTION I - COVERAGE A**, and for all medical expenses caused by accidents under **SECTION I - COVERAGE C**, which can be attributed only to ongoing operations at single construction projects away from premises owned by or rented to the insured:

(1) The most we will pay will be capped at $10,000,000, regardless of the number of:

a. "Occurrences";
b. Insureds;
c. Claims made or "suits" brought;
d. Persons or organizations making claims or bringing "suits"; or
e. Separate construction projects.

(2) Subject to paragraph 3.A.(1) above:

a. A separate Single Construction Project General Aggregate Limit applies to each construction project, and that limit is equal to the amount of the General Aggregate Limit shown in the Declarations.

b. The Single Construction Project Aggregate Limit is the most we will pay for the sum of all damages under **COVERAGE A**, except damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard", and for medical expenses under **COVERAGE C** regardless of the number of:

i. Insureds;
ii. Claims made or "suits" brought; or
iii. Persons or organizations making claims or bringing "suits".

c. Any Payments made under **COVERAGE A** for damages or under **COVERAGE C** for medical expenses shall reduce the Single Construction Project General Aggregate Limit for that construction project. Such payments shall not reduce the General Aggregate Limit shown in the Declarations nor shall they reduce any other Single Construction Project General Aggregate Limit for any other separate construction project away from premises owned or rented by the insured.

d. The limits shown in the Declarations for Each Occurrence, Fire Damage and Medical Expenses continue to apply. However, instead of being subject to the General Aggregate Limit shown in the Declarations, such limits will be subject to the applicable Single Construction Project General Aggregate Limit.

B. For all sums which the insured becomes legally obligated to pay as damages caused by "occurrences" under **SECTION I - COVERAGE A,** and for all medical expenses caused by accidents under **SECTION I - COVERAGE C,** which cannot be attributed only to ongoing operations at a single construction project away from premises owned by or rented to the insured:

(1) Any payments made under **COVERAGE A** for damages or under **COVERAGE C** for medical expenses shall reduce the amount available under the General Aggregate Limit or the Products-Completed Operations Limit, whichever is applicable; and
(2) Subject to paragraph **3.A.(1)** above payments shall not reduce any Single Construction Project General Aggregate Limit.

C. When coverage for liability arising out of the "products-completed operations hazard" is provided, any payments for damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard" will reduce the Products-Completed Operations Aggregate Limit, and not reduce the General Aggregate Limit or the Single Construction Project General Aggregate Limit.

D. If the applicable construction project has been abandoned, delayed, or abandoned and then restarted, or if the authorizing contracting parties deviate from plans, blueprints, designs, specifications or timetables, the project will still be deemed to be the same construction project.

E. If endorsement **CG 25 03, Designated Construction Project(s) General Aggregate Limit** (or a similar construction project(s) aggregate endorsement) is also part of this policy or coverage part, the

most we will pay for all sums which the insured becomes legally obligated to pay as damages caused by "occurrences" under **SECTION I - COVERAGE A** and all medical expenses under **SECTION I - COVERAGE C**, which can be attributed only to ongoing operations at:

(1) Any construction project(s) designated in such **CG 25 03** or similar construction project(s) aggregate endorsement; or
(2) Any construction project(s) to which the provisions of **3. AGGREGATE LIMITS OF INSURANCE FOR SINGLE CONSTRUCTION PROJECTS** in this endorsement and the provisions of such **CG 25 03** or similar construction project(s) aggregate endorsement both apply.

will be subject to the same $10,000,000 cap shown in paragraph **3.A.(1).**

F. The provisions of **SECTION III - LIMITS OF INSURANCE** not otherwise modified by this endorsement shall continue to apply as stipulated.

4. REVISIONS TO "WHO IS AN INSURED"
SECTION II - WHO IS AN INSURED, 2.a., is deleted and replaced with the following:
Your "volunteer workers" only while performing duties related to the conduct of your business, or your "employees", other than either your "executive officers" (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business, including rendering first aid in an emergency. However, none of these employees or "volunteer workers" are insureds for:

Paragraphs **(1)** through **(2)** continue to apply.

5. EXPANDED "EXPECTED OR INTENDED INJURY" DEFINITION
SECTION I - COVERAGES - COVERAGE A BODILY INJURY AND PROPERTY DAMAGE LIABILITY 2. a. Expected or Intended Injury Exclusion is deleted and replaced with the following:

a. "Bodily injury" or "property damage" expected or intended from the standpoint of the insured. This exclusion does not apply to "bodily injury" or "property damage" resulting from the use of reasonable force for the purpose of protecting persons or property.

6. KNOWLEDGE OF OCCURRENCE, OFFENSE, CLAIM, OR SUIT
SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS, 2. Duties In The Event Of Occurrence, Offense, Claim Or Suit is revised by the addition of Items **e.** and **f.**:

e. The requirement in Condition **2.a.** applies only when the "occurrence" or offense is known to:
(1) You, if you are an individual;
(2) A partner, if you are a partnership;
(3) An "executive officer", an "employee" designated by you to give such notice, or insurance manager (if your are an organization other than a partnership, joint venture or limited liability company); or
(4) A manager (if you are a limited liability company).

f. The requirement in Condition **2.b.** will not be breached unless the breach occurs after such claim or "suit" is known to:
(1) You, if you are an individual;
(2) A partner, if you are in a partnership;
(3) An "executive officer" or insurance manager (if you are an organization other that a partnership, joint venture or limited liability company); or
(4) A manager (if you are a limited liability company).

7. UNINTENTIONAL OMISSIONS IN DISCLOSURE
SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS, 6. Representation is revised by the addition of Item **d.**:

d. Your failure to disclose all hazards prior to "occurrences" existing as of the inception date of this policy shall not prejudice the coverage afforded by this policy, provided such failure to disclose all hazards or prior "occurrences" is not intentional.

This provision does not affect our right to collect additional premium or to exercise our right of cancellation or non-renewal.

8. WAIVER OF SUBROGATION BY CONTRACT OR AGREEMENT
SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS, 8. Transfer Of Rights Of Recovery Against Others To Us

We waive any right of recovery we may have against any person or organization because of payments we make for injury or damage arising out of:

A. Premises owned, occupied by, or rented or loaned to you;
B. "Your work" or "your products";
C. Ongoing operations performed by you or on your behalf, when you and such person or organization have agreed in writing in a contract or agreement to waive such right of recovery, provided:
(1) Such written contract or agreement was:
a. Made prior to the covered injury or damage; and
b. In effect at the time of the covered injury or damage; and
(2) The injury or damage arises out of the operations contemplated by such written contract or agreement; and
(3) This waiver applies only to such person or organization designated in such written contract or agreement.

9. NEWLY FORMED OR ACQUIRED ORGANIZATIONS
SECTION II - WHO IS AN INSURED, 3. is deleted and replaced with the following:
3. The Named Insured shown in the Declarations is amended to include any organization you newly form or acquire, other than:

a. A partnership, joint venture, or limited liability company; or
b. An organization excluded either by the provisions of this Coverage Part, or by endorsement, and over which you maintain ownership or majority interest of more that 50%, subject to the following additional provisions:
i. This insurance does not apply to any newly formed or acquired organization that is an "insured" under any other General Liability policy or would be an "insured" under such a policy but for its termination or the exhaustion of its Limit of Insurance.
ii. Coverage under this provision does not apply to injury, damage, expense, or "loss" that occurred before you formed or acquired the organization.
iii. Coverage under this provision is afforded only until the next anniversary date of this policy's effective date after you acquire or form the organization, or the end of the policy period, whichever is earlier.

This provision does not include any newly formed or acquired organization 180 days after its formation or acquisition, unless you have given us notice of the formation or acquisition.

10. LEGAL LIABILITY FOR DAMAGE TO PREMISES RENTED TO YOU (Specified Perils)
SECTION III - LIMITS OF INSURANCE, 6. is deleted and replaced with the following:

6. Subject to **5.** above, the greater of:

a. $300,000, or
b. The damage to Premises Rented to You Limit shown in the Declarations

is the most we will pay under Coverage **A** for any one premises while rented to you or temporarily occupied by you with permission of the owner, in the event of

(1) damages because of "property damage"; or
(2) damage by "specified perils".

This limit will apply to all damages proximately caused by the same event, whether such damage results from "specified perils" or other covered causes of loss or any combination thereof.

11. NON-OWNED WATERCRAFT UP TO 51 FEET IN LENGTH
SECTION I COVERAGES, COVERAGE A BODILY INJURY AND PROPERTY DAMAGE LIABILITY, 2. Exclusions, g. (2) (a) is deleted and replaced with the following:

(a) Less than 51 feet long; and

12. MEDICAL PAYMENTS REVISED
SECTION I COVERAGES, COVERAGE C MEDICAL PAYMENTS is amended as follows:

A.1. Insuring Agreement a.(3)(b) is deleted and replaced with the following:
(3)(b) the expenses are incurred and reported to us within three years of the date of the accident; And

B. Item **1.c.** is added to **1. Insuring Agreement:**
If **COVERAGE C MEDICAL PAYMENTS** is not otherwise excluded from this policy, we will pay medical expenses up to the greater of:

(a) $15,000; or
(b) The limit shown in the Declarations of this policy or coverage part,

13. PROPERTY DAMAGE FOR TOOLS LOANED TO YOU
SECTION I COVERAGES, COVERAGE A BODILY INJURY AND PROPERTY DAMAGE LIABILITY
2.j. Damage to Property Exclusion is revised. Item **j.(3)** is deleted and replaced with the following:

j.(3) Tools or equipment loaned to you if the tools or equipment are being used to perform operations at the time of the loss. The most we will pay for such tools or equipment loaned to you is $10,000 per "occurrence".

14. REVISIONS TO DEFINITIONS
SECTION V - DEFINITIONS is revised as follows:

9.a. "Insured Contract" is deleted and replaced with the following:

9.a. A contract for lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by "specified perils" to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract".

12. "Mobile Equipment", subparagraph **f.(1)** is deleted and replace with the following:
(1) Equipment with a gross vehicle weight of 1,000 pounds or more and designed primarily for:
a. Snow removal;
b. Road maintenance, but nor construction or resurfacing;
c. Street Cleaning

The following definitions are added:

23. "Specified perils" means:
Fire; lightning; explosion; windstorm or hail; smoke; aircraft or vehicles; riot or civil commotion; vandalism; leakage from fire extinguishing equipment; weight of snow, ice or sleet; or "water damage".

24. "Water damage" means accidental discharge of water or steam as the direct result of the breaking or cracking of any part of a system or appliance containing water or steam.